Sl. No.	Case (Year)	Supreme Court Judgement
		legislature; it is wholly irrelevant in determining whether the Act infringes any fundamental right.
5.	M. Ismail Faruqui vs. Union of India (1994)	It upheld the validity of the Acquisition of Certain Area at Ayodhya Act, 1993 made by the Parliament. It held that the pith and substance of the Act was 'acquisition of property' and not related to 'public order' and hence, it fell within the ambit of the Concurrent List.
6.	Zameer Ahmed Latifur Rehman Sheikh vs. State of Maharashtra (2010)	It upheld the validity of the Maharashtra Control of Organised Crime Act, 1999. The Act was challenged on the ground that it encroached upon the subject enumerated in the Union List.

DOCTRINE OF COLOURABLE LEGISLATION

1. Meaning of the Doctrine

The constitution (under Article 246) provides for the division of legislative powers between the Parliament and the State Legislatures. It enumerates the legislative subjects in three lists, namely, the Union List, the State and the Concurrent List under the Seventh Schedule. Both are required to operate within their respective legislative competence.

But, some times, a legislature makes a law which, though in form appears to be within its competence, in effect and substance lies beyond its ambit. Then the law would be declared as void. In other words, the different colour given to the law (by the legislature so as to bring it within its ambit) would not save it from being declared as invalid. Such a law is called as colourable legislation.

Colourable legislation would emerge only when a legislature had no power to legislate on an item either because it was not included in the list assigned to it under the respective entries in the Seventh Schedule, or on account of limitations imposed whether under Part III of the Constitution (relating to the Fundamental rights) or any other power under the constitution.

The whole doctrine of colourable legislation is based upon the maxim that "you cannot do indirectly, what you cannot do directly" (i.e., what cannot be done directly, cannot also be done indirectly). This means that the use of the expression 'colourable legislation' seeks to convey that by enacting the legislation in question, the legislature is seeking to do indirectly what it cannot do directly.

2. Propositions of the Doctrine

The Supreme Court has laid down the following propositions in respect of the doctrine of colourable legislation[29]:

1. If the constitution distributes the legislative powers amongst different legislative bodies, which have to act within their respective spheres marked out by specific legislative entries, or if there